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California Regional Water Quality Control Board
North Coast Region

Order No. 97-93
I.D. No. 1A780410MOD

Waste Discharge Requirements

for

Newell County Water District

Modoc County

The California Regional Water Quality Control Board, North Coast Region, (hereinafter the Regional Water Board) finds that:

1. The Newell County Water District (hereafter the discharger) owns and operates wastewater treatment and disposal facilities which are located in the NE 1/4 of the SE 1/4 of Section 23, T47N, R5E, MDB&M as shown on "Attachment A", incorporated herein and made a part of this Order.
2. The Newell County Water District participated in the Housing and Community Development Block Grant Program to construct improvements of its wastewater treatment works. Improvements undertaken included placement of rock slope protection on pond dikes to minimize erosion and construction of a third percolation bed for final effluent disposal. The improvements were completed on June 13, 1997. They provide additional wastewater disposal capacity.
3. The wastewater treatment facilities consist of a gravity sewer into a pump station followed by two facultative ponds and three percolation ponds for final disposal. A pressure line connects the pump station to facultative ponds. The system has a design dry weather flow of 0.156 mgd and is constructed and operated so that there is no wastewater discharge to surface waters.
4. The Water Quality Control Plan for the North Coast Region includes water quality objectives, a prohibition against discharge to the Klamath River Basin with the exception of the lower Lost River system and receiving water limitations.

5. The beneficial uses of the Lost River and its tributaries include:
 - a. agricultural supply
 - b. groundwater recharge
 - c. freshwater replenishment
 - d. water contact recreation
 - e. noncontact water recreation
 - f. warm freshwater habitat
 - g. wildlife habitat
6. Beneficial uses of areal groundwaters include:
 - a. municipal water supply
 - b. agricultural water supply
 - c. industrial service supply
 - d. industrial process supply
7. The discharge is presently governed by Waste Discharge Requirements Order No. 85-70, adopted by the Regional Water Board on May 23, 1985.
8. This project is exempt from provisions of the California Environmental Quality Act of 1970 as an existing facility. (Title 14, Division 7, Chapter 3, Section 15301, California Code of Regulations)
9. The Regional Water Board has notified the discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations.
10. The Regional Water Board, in a public meeting, heard and considered all comments pertaining to the discharge.

THEREFORE, IT IS HEREBY ORDERED that Waste Discharge Requirements Order No. 85-70 be rescinded and the discharger, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. DISCHARGE PROHIBITIONS

1. The discharge of waste to the Lost River or its tributaries including facilities of the Tulelake Irrigation District is prohibited.

2. The discharge of any waste not specifically regulated by this Order is prohibited.
3. Creation of a pollution, contamination, or nuisance, as defined by Section 13050 of the California Water Code (CWC), is prohibited. [Health and Safety Code, Section 5411]
4. The discharge of sludge or digester supernatant is prohibited.
5. The discharge of untreated waste from anywhere within the collection, treatment, or disposal facility is prohibited.
6. The discharge of waste to land which is not owned or controlled by the discharger is prohibited.

B. DISCHARGE SPECIFICATIONS

1. Waste ponded within the oxidation percolation ponds shall not have a dissolved oxygen content of less than 1.0 mg/l.
2. Discharge to percolation ponds shall be terminated when the freeboard decreases to 1.0 feet.
3. The discharge of waste shall not cause a pollution of groundwater.
4. The mean daily dry weather flow of waste shall not exceed 0.156 mgd.

C. SOLIDS DISPOSAL

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of at a legal point of disposal, and in accordance with the provisions of Title 27, of the California Code of Regulations or as waived pursuant to Section 13269 of the California Water Code.

D. PROVISIONS

1. A copy of this Order shall be maintained at the discharge facility and be available at all times to operating personnel.
2. Severability

Provisions of these waste discharge requirements are severable. If any provision of these requirements is found invalid, the remainder of these requirements shall not be affected.

3. Operation and Maintenance

The discharger must maintain in good working order and operate as efficiently as possible any facility or control system installed by the discharger to achieve compliance with the waste discharge requirements.

4. Change in Discharge

The discharger must promptly report to the Regional Water Board any material change in the character, location, or volume of the discharge.

5. Change in Ownership

In the event of any change in control or ownership of land or waste discharge facilities presently owned or controlled by the discharger, the discharger must notify the succeeding owner or operator of the existence of this Order by letter, a copy of which must be forwarded to this office.

6. Vested Rights

This Order does not convey any property rights of any sort or any exclusive privileges. The requirements prescribed herein do not authorize the commission of any act causing injury to persons or property, nor protect the discharger from his liability under federal, State, or local laws, nor create a vested right for the discharger to continue the waste discharge.

7. Monitoring

The discharger must comply with the Contingency Planning and Notification Requirements Order No. 74-151 and the Monitoring and Reporting Program No. 97-93 and any modifications to these documents as specified by the Executive Officer. Such documents are attached to this Order and incorporated herein.

8. Inspections

The discharger shall permit authorized staff of the Regional Water Board:

- a. entry upon premises in which an effluent source is located or in which any required records are kept;
- b. access to copy any records required to be kept under terms and conditions of this Order;
- c. inspection of monitoring equipment or records; and
- d. sampling of any discharge.

9. Noncompliance

In the event the discharger is unable to comply with any of the conditions of this Order due to:

- a. breakdown of waste treatment equipment;
- b. accidents caused by human error or negligence; or
- c. other causes such as acts of nature;

the discharger must notify the Executive Officer by telephone as soon as he or his agents have knowledge of the incident and confirm this notification in writing within two weeks of the telephone notification. The written notification shall include pertinent information explaining reasons for the noncompliance and shall indicate the steps taken to correct the problem and the dates thereof, and the steps being taken to prevent the problem from recurring.

10. Revision of Requirements

This Regional Water Board requires the discharger to file a report of waste discharge at least 120 days before making any material change or proposed change in the character, location, or volume of the discharge.

11. Adequate Capacity

Whenever a publicly owned wastewater treatment plant will reach capacity within four years, the discharger shall notify the Regional Water Board. A copy of such notification shall be sent to appropriate local elected officials, local permitting agencies, and the press. The discharger must demonstrate that adequate steps are being taken to address the capacity problem. The discharger shall submit a technical report to the Regional Water Board showing how flow volumes will be prevented from exceeding capacity, or how capacity will be increased, within 120 days after providing notification to the Regional Water Board, or within 120 days after receipt of Regional Water Board notification, that the POTW will reach capacity within four years. The time for filing the required technical report may be extended by the Regional Water Board. An extension of 30 days may be granted by the Executive Officer, and longer extensions may be granted by the Regional Water Board itself. [CCR Title 23, Section 2232]

12. Operator Certification

Supervisors and operators of municipal wastewater treatment plants shall possess a certificate of appropriate grade in accordance with Title 23, California Code of Regulations, Section 3680. The State Water Board may accept experience in lieu of qualification training. In lieu of a properly certified wastewater treatment plant operator, the State Board may approve use of a water treatment plant operator of appropriate grade certified by the State Department of Health Services where reclamation is involved.

Certification

I, Benjamin D. Kor, Executive Officer,
do hereby certify that the foregoing is a
full, true, and correct copy of an Order
adopted by the California Regional
Water Quality Control Board, North
Coast Region, on September 25, 1997.

Benjamin D. Kor
Executive Officer

(NCWDWDR)

California Regional Water Quality Control Board
North Coast Region

Monitoring and Reporting Program No. 97-93

for

Newell County Water District

Modoc County

Influent Monitoring

The average daily flow of waste shall be recorded daily.

Effluent Monitoring

Grab samples shall be collected of the treated wastewater, at a convenient location prior to discharge to the percolation beds, and analyzed for the following:

<u>Constituent</u>	<u>Unit</u>	<u>Frequency</u>
BOD (20°C, 5-day)	mg/l	monthly
Suspended Solids	mg/l	monthly
Settleable Solids	ml/l	monthly
Hydrogen Ion	pH	monthly
Dissolved Oxygen	mg/l	monthly

Disposal Area Monitoring

- A. The pond freeboard levels shall be recorded monthly and reported to the Regional Water Board.
- B. The discharger shall record facility maintenance activities (such as weed removal, discing, and grading) and the results of weekly observations which describe the percolation beds and document the appearance, if any, of surface runoff, ponded areas, or unusual conditions. Notations shall include ongoing operations, such as dosing and resting of percolation beds and status of weeding.

Operation and Maintenance Schedule

Effluent Pumping Facilities

- A. Pumping facilities and force main shall be inspected at least twice each year for wear, repairs, and required maintenance.

- B. Records shall be kept of preventive maintenance performed on pump facilities, sewer, and force main.

Reporting

Monthly monitoring reports shall be submitted to the Regional Water Board by the 15th day of the following month. Monitoring reports shall contain all monitoring results that were obtained during the month for which the report is prepared. In reporting the monitoring data, the discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner to illustrate clearly the compliance with Waste Discharge Requirements. Narrative reporting, including any statements of noncompliance, inspection, and maintenance statements, or any statements of corrective action shall be in letter form and signed by the responsible official of the discharger.

Ordered by _____

Benjamin D. Kor
Executive Officer

September 25, 1997

California Regional Water Quality Control Board
North Coast Region

GENERAL MONITORING AND REPORTING PROVISIONS

February 3, 1971
(Retyped May 20, 1993)

GENERAL PROVISIONS FOR SAMPLING AND ANALYSIS

Unless otherwise noted, all sampling, sample preservation, and analyses shall be conducted in accordance with the current edition of "Standard Methods for the Examination of Water and Waste Water" or approved by the Executive Officer.

All analyses shall be performed in a laboratory certified to perform such analyses by the California State Department of Health or a laboratory approved by the Executive Officer.

All samples shall be representative of the waste discharge under the conditions of peak load.

GENERAL PROVISIONS FOR REPORTING

For every item where the requirements are not met, the discharger shall submit a statement of the actions undertaken or proposed which will bring the discharge in full compliance with requirements at the earliest time and submit a timetable for correction.

By January 30 of each year, the discharger shall submit an annual report to the Regional Board. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year. In addition, the discharger shall discuss the compliance record and the corrective actions taken or planned which may be needed to bring the discharge into full compliance with the waste discharge requirements.

The discharger shall file a written report within 90 days after the average dry weather flow for any month that equals or exceeds 75 percent of the design capacity of the waste treatment or disposal facilities. The report shall contain a schedule for studies, design, and other steps needed to provide additional capacity or limit the flow below the design capacity prior to the time when the waste flow rate equals the capacity of the present units.

California Regional Water Quality Control Board
North Coast Region

CONTINGENCY PLANNING AND NOTIFICATION REQUIREMENTS

FOR

ACCIDENTAL SPILLS AND DISCHARGES

ORDER NO. 74-151

The California Regional Water Quality Control Board, North Coast Region, finds that:

1. Section 13225 of the Porter-Cologne Water Quality Act requires the Regional Board to perform general duties to assure positive water quality control.
2. The Regional Board has been advised of situations in which preparations for, and response to accidental discharges and spills have been inadequate.
3. Persons discharging waste or conveying, supplying, storing, or managing wastes or hazardous materials have the primary responsibility for contingency planning, incident reporting and continuous and diligent action to abate the effects of such unintentional or accidental discharge.

THEREFORE, IT IS HEREBY ORDERED THAT:

- I. All persons who discharge wastes or convey, supply, store, or otherwise manage wastes or other hazardous material shall:
 - A. Prepare and submit to this Regional Board, according to a time schedule prescribed by the Executive Officer, a contingency plan defining the following:
 1. Potential locations and/or circumstances under which accidental discharge incidents might be expected to occur,
 2. Possible water quality effects of accidental discharges,
 3. The conceptual plan for cleanup and abatement of accidental discharge incidents, including:
 - a. The individual who will be in charge of cleanup and abatement activities on behalf of the discharger,
 - b. The equipment and manpower available to the discharger to implement the cleanup and abatement plans,
 - B. Immediately report to the Regional Board any accidental discharge incidents. Such notification shall be made by telephone as soon as the responsible person or his agent has knowledge of the incident.
 - C. Immediately begin diligent and continuous action to cleanup and abate the effects of any unintentional or accidental discharge. Such action shall include temporary measures to abate the discharge prior to completing permanent repairs to damaged facilities.

- D. Confirm the telephone notification in writing within two weeks of the telephone notification. The written notification shall include: reasons for the discharge, duration and volume of the discharge, steps taken to correct the problem and steps being taken to prevent the problem from recurring.
- II. Upon original receipt of phone report (I.B.), the Executive Officer shall immediately notify all affected agencies and known users of waters affected by the unintentional or accidental discharge.
- III. Provide updated information to the Regional Board in the event of change of staff, size of the facility, or change of operating procedures which will affect the previously established contingency plan.
- IV. The Executive Officer or his employees shall maintain liaison with the discharger and other affected agencies and persons to provide assistance in cleanup and abatement activities.
- V. The Executive Officer shall transmit copies of this Order to all persons whose discharges of waste handling activities are governed by Waste Discharge Requirements or an NDPES permit. Such transmittal shall include a current listing of telephone numbers of the Executive Officer and his key employees to facilitate compliance with Item I.B of this Order.

Ordered by


Benjamin D. Kor
Executive Officer

July 24, 1974
(Retyped February 15, 1990)

Your primary notification should be to the Regional Board office in Santa Rosa at (707) 576-2220. During off hours, you will be able to leave a recorded message at that number and, if you have a spill or discharge emergency, you will also be referred to the State Office of Emergency Services (OES) at (800) 852-7550. OES maintains a roster of key employees and will relay your notification to Regional Board staff.